

FORM No. HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

C.R. No.20252 of 2026

LNG Easy (Private) Limited and others **Versus** Cygnus Energy (Private) Limited and others

Sr. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary
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07.4.2026 Mr. Hammad Hussain, Advocate for petitioners.

Petitioners in this civil revision seeks annulment of order dated 06.1.2026 and 11.2.2026 and also for dismissal of application under Order XII, Rules 2 and 4-A, C.P.C.

2. Plaintiffs/respondent Nos.1 to 3 filed civil suit No.27019/2024 titled Cygnus Energy (Pvt) Ltd and others vs. LNG Easy (Pvt) Ltd and others on 09.9.2024 for recovery of PKR 168,964,247/- along with markup till realization, USD 4,553,505/- on account of loss of profits and net potential earnings (along with markup till payment) and PKR Rs.1,000,000,000/- as compensation for losses and damages. Petitioners/defendants filed written statement on 28.9.2024 controverting petitioners' claims and also opposed the suit on legal and factual premises. On 28.9.2024 petitioners also instituted civil suit No. 32890/2024 titled LNG Easy (Pvt.) Limited and others v. Cygnus Energy (Pvt.) Limited and others for recovery of USD 11,109,245.33 as damages and compensation along with a direction for return of certain equipment including a cryogenic insulated cylinder, a burner and a vaporizer or in alternative for compensation of value thereof. This suit was also contested by the respondents by filing written statement on legal and factual grounds. Vide order dated 27.1.2025 both the civil suits were consolidated by the Court observing that the subject matter of both suits was the same and filed on the basis of one and the same agreement; therefore, with

a view to avoid conflicting and contradictory judgments the two suits were consolidated; respondents' suit No. 27019/2004 titled Cygnus Energy (Private) Limited and others v. LNG Easy (Private) Limited and others being prior in time the onward proceedings would be carried on in the said suit while the suit of petitioners No. 32890/20024 titled LNG Easy (Private) Limited and others v. Cygnus Energy (Private) Limited and others would run as a connected suit. Consolidated issues were framed and the case was referred to the other learned Civil Judge for further proceedings in accordance with law.

3. The respondents/plaintiffs filed an application under Order XII, Rules 2 and 4-A, C.P.C. mentioning documents from serial Nos.1 to 53 with description and date of documents, praying that the petitioner/defendants be asked to "admit or deny the documents". Petitioners resisted the application by filing reply wherein no "admission or denial" was made. Vide order dated 11.2.2026 the plaintiff/respondents were directed to provide documents cited as serial No.1 to 53 in the application and the case was adjourned. On 14.2.2026 counsel of plaintiffs supplied copies of documents mentioned at serial No.1 to 53 of the application in pursuance of order dated 6.1.2026 which were delivered to the counsel for defendant/petitioners who was asked to "admit or deny" the documents. Case was adjourned to 07.4.2026 for the said purposes. These two orders dated 06.1.2026 and 11.2.2026 are the subject matter of challenge in this revision petition.

4. Main grievance, as articulated by learned counsel for the petitioners, was that case had crossed the stage of preliminary steps, matter was set up for evidence, respondents had already produced witness PW-1 whose examination-in-chief was being recorded and that at such

stage, the application could not be entertained nor petitioners could be directed for “admission or denial” of documents as it would be against the scheme of C.P.C. which provided that after completion of preliminary stages and upon consideration of pleadings and documents the court would proceed to determine material propositions of fact and law in dispute and frame issues for decision of the case. Adds that the pleadings having been completed, issues having been framed, respondents intended to make up the deficiency in the pleadings which was not permissible and that the order of learned Civil Judge was mechanically passed without recording any reason and that the respondents wanted the petitioners to “admit or deny” even those documents which were generated and maintained by them which the petitioners could not be asked to “admit or deny” and that intent behind the application was to shift the onus upon the petitioners for matter that the respondents/plaintiffs were obligated to prove.

5. Submissions made have been given due consideration. Perusal of the documents filed with the petition shows that the suit was filed by respondents on 09.9.2024 while the suit of petitioners was filed on 28.9.2024. Both suits were consolidated by the learned Civil Judge vide order dated 27.1.2025 observing that both the matters arose from the same agreement and out of the same cause, therefore, suit of petitioners was consolidated with the suit of respondents with a view to avoid contradictory and conflicting judgments. In the same order the learned Civil Judge observed that certain preliminary objections in the written statement with respect to the authorization of plaintiffs including other objections were raised, which could not be decided summarily and the same required evidence of the parties hence the preliminary objections raised were decided

accordingly. The statement of witness of respondents PW-1 was being partly recorded and examination-in-chief was still incomplete when an application under Order XII, Rule 2 and 4-A, C.P.C. read with section 151, C.P.C. was filed giving particulars of 53 documents with date and description claiming that these were either annexed with the plaint or with the written statement in the suits otherwise in possession, access or knowledge of petitioners and in any event petitioners/defendants may examine the documents and respond in terms of admission or denial thereto in the interest of justice. In the counter affidavit to the application the petitioners/defendants did not challenge the assertions that the documents were either annexed with the plaints or with the written statements in both suits and were in their possession or access rather the reply was that the respondents were bound to file the actual documents with the application and that mere furnishing the list of documents without attaching certified or original copies thereof will defeat the purpose of law and that the plea of the plaintiffs/respondents that documents were already annexed with the pleadings of suit No. 32890/2024 or otherwise in possession or access or knowledge of the defendants was vague, evasive and speculative and that such presumptive and generalized assertions will not discharge the obligation to place the actual documents before the court for meaningful “admission or denial” and that any document annexed with the plaint had already been responded by the petitioners/defendants in their written statement. It was added that the plaintiffs could not shift burden upon the petitioners/defendants to locate and examine the documents and that right to seek admission or denial was not intended to facilitate a fishing expedition nor could it be used to

cast undue burden on the opposite party. The learned Civil Judge passed the order dated 06.1.2026 as under:

“Present: Counsel for parties

Plaintiff has tabled application to admit documents under Order 12 rule 2 and 4-A CPC mentioning documents from Sr. No. 1 to 53 cited in paragraph No.2 of the application with description, date of the documents with prayer that defendant may be asked to either admit or deny the documents.

2. Defendant has resisted the application by submitting the written reply and in written reply there does not appear to admit or deny of the documents contained in the application.

3. In due discharge of provisions of under Order XII rules 2 & 4-A CPC, call upon defendant to admit documents at Sr. No. 1 to 53 provided in the application one by one. To come up for response of the defendants to admit documents contained in the application for 21.1.2026.:

It appears that in view of the reply filed by the petitioner where they had objected to the non-supply of documents, the requisite documents were provided to the petitioners as mentioned in the order dated 11.2.2026 which is as under:

“Plaintiff is directed to provide documents cited at Sr. No. 1 to 53 in the application.

To come up for submission of above said documents by the plaintiff on 14.2.2026”

6. Deeper consideration of submissions made by learned counsel shows that same are not well founded. The application was filed under Order XII, Rules 2 and 4-A CPC and section 151, C.P.C. The provisions of Order XII, Rule 2, C.P.C. as amended and substituted by Lahore High Court vide notification No. 237/Legis/XI-Y-26, gazette of Punjab dated 22.8.2018 is as under:

“In Order XII, for rule 2, the following shall be substituted:-

2. *Admission of documents.* (1)- The court shall also require the parties to admit or deny the documents annexed with the plaint or, as the case may be, the written statement.

(2). If a party fails to comply with the direction under sub rule (2) the Court may proceed against such party under rule 21 of Order XI.

(3). If a party denies a document which is proved at the trial, the court shall burden such party with such heavy costs as it may deem fit.”

Similarly Order, XII, Rule 4-A, C.P.C. was inserted by notification No. 300/Rules/XI-Y-26 dated 2.10.2001. Gaz. Of Punjab. Extra Pt.III 28.11.2001 as under:

“After rule 4 the following rule 4-A shall be added:-

4-A. *Power of Court to record admission of documents and facts.* Notwithstanding that no notice to admit documents or facts has been given under rules (2) and 4 respectively, the Court may, at any stage of the proceedings before it, of its own motion, call upon any party to admit any document or fact and shall in such a case, record whether the party admits or refuses or neglects to admit such document or fact”.

Perusal of amended Rule 2 of Order XII, C.P.C. shows that said Rule mandates that the court shall require the party to admit or deny the document annexed with the plaint or as the case may be, the written statement and that if a party fails to comply with the direction under subrule (2) thereof, court may proceed against the party under Rule 21 of Order XII, C.P.C. Subrule (3) of Rule supra mandates that if a party denies the documents which are proved at trial, the court shall burden said party with such costs as it may deem fit. Likewise Rule 4-A of Order XII, C.P.C. gives power to the court to call upon any party of its own motion to admit or deny any document or fact and in such a case record whether the party admits or refuses or neglects to admit such document or fact. Perusal of the amended Rule leaves no manner of doubt that the court is fully competent at any stage of the proceedings to call upon a party to admit a document or deny and only consequence of non-admission of the document would be that the relevant party will have to prove the same and if the document is proved then the court is competent to burden the party denying the document with costs as it may deem fit.

7. In view of the clear wording of Rules referred supra the orders passed by the court on 06.1.2026 and 11.2.2026 could not be taken any exception to as the same were in accordance with law and meant to serve the ends of justice.

The arguments of shifting the burden of proof is highly misconceived and absurd. In fact, the rules referred supra are meant to facilitate early disposal of the case and saving unnecessary delay in the matter of summoning of witnesses if the documents are not disputed. The parties are expected to assist the court for ensuring expeditious disposal of the case and to do complete justice by avoiding unnecessary hyper-technical pleas. The purpose of rules is to shorten the litigation providing parties an opportunity of admitting undisputed documents and concentrating on serious issues involved in the matter. No question of shifting burden by admission of documents which are not otherwise controversial would arise. The Rules referred, as such, empower the court to call upon a party at any stage of proceedings to admit or deny the documents who are expected to cooperate in the matter for accelerated trial and for complete justice instead of raising unnecessary objections.

8. For the reasons supra, the revision petition is misconceived and legally untenable which is accordingly **dismissed.** No Order as to costs.

(RASAAL HASAN SYED)
JUDGE

APPROVED FOR REPORTING

JUDGE